

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING REQUIREMENTS REGARDING HOME
5 SCHOOLS; SEPARATING THE REQUIREMENTS FOR HOME SCHOOLS FROM THE REQUIREMENTS
6 FOR NONPUBLIC SCHOOLS; AMENDING SECTION 20-5-109, MCA; AND PROVIDING AN IMMEDIATE
7 EFFECTIVE DATE."

8
9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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11 **Section 1.** Section 20-5-109, MCA, is amended to read:

12 **"20-5-109. Nonpublic and home school requirements for compulsory enrollment exemption. (1)**

13 To qualify its students for exemption from compulsory enrollment under 20-5-102, a nonpublic ~~or home~~ school:

14 (1) (a) shall maintain records on pupil attendance and disease immunization and make the records
15 available to the county superintendent of schools on request;

16 (2) (b) shall provide at least the minimum aggregate hours of pupil instruction in accordance with 20-1-
17 301 and 20-1-302;

18 (3) (c) must be housed in a building that complies with applicable local health and safety regulations;
19 and

20 (4) (d) shall provide an organized course of study that includes instruction in the subjects required of
21 public schools as a basic instructional program pursuant to 20-7-111; ~~and~~.

22 (5) (2) ~~in the case of home schools, To qualify its students for exemption from compulsory enrollment~~
23 under 20-5-102, a home school:

24 (a) shall notify the county superintendent of schools of the county in which the home school is
25 located in each school fiscal year of the student's attendance at the school;

26 (b) shall maintain records on pupil attendance and make the records available to the county
27 superintendent on request;

28 (c) shall provide at least the minimum aggregate hours of pupil instruction in accordance with 20-1-

1 301 and 20-1-302; and
2 (d) shall provide an organized course of study that includes instruction in the subjects required of
3 public schools as a basic instructional program pursuant to 20-7-111."

5 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

6 - END -